

Important information about your pay and conditions

For help in your language visit fairwork.gov.au/language-help

Employees in Australia have entitlements and protections at work, under:

Fair Work laws	Awards	Enterprise agreements	Employment contracts
			
▶ set minimum entitlements for all employees ▶ includes the National Employment Standards	▶ set minimum pay and conditions for an industry or occupation ▶ cover most employees in Australia	▶ set minimum pay and conditions for a particular workplace ▶ negotiated and approved through a formal process	▶ provide additional conditions for an individual employee ▶ can't reduce or remove minimum entitlements

Find your award at fairwork.gov.au/awards Check if your workplace has an enterprise agreement at fwc.gov.au/agreements

Other information statements

Your employer may also need to give you other information statements.

The Casual Employment Information Statement (CEIS) must be provided to **casual employees** before, or as soon as possible after, the start of employment, and also at set times throughout their employment. For more information and to access the CEIS go to fairwork.gov.au/ceis

The Fixed Term Contract Information Statement (FTCIS) must be provided to **employees on a fixed term contract** before, or as soon as possible after, entering into the contract. You can find the FTCIS at fairwork.gov.au/ftcis

Your pay

Your **minimum pay rates** are in your **award or enterprise agreement**. If there isn't an award or agreement for your job, you must get at least the National Minimum Wage. Minimum pay rates are usually updated yearly.

Find out what you should get at fairwork.gov.au/minimum-wages

National minimum wage
From 1 July 2025



\$24.95 per hour or \$948 per week
(based on a 38 hour week)
for full-time employees



\$24.95 per hour
for part-time employees



\$31.19 per hour
for casual employees

This is the **adult minimum rate for employees with no award or enterprise agreement**. Lower rates may apply to juniors, apprentices and trainees. They also may apply to employees with disability if their disability affects their productivity. Lower rates may also apply under some awards. For example, introductory rates might apply for a limited time after an employee starts their job. **You can't agree to be paid less** than the minimum pay rates that apply for your job.



Use our free calculators to check your pay, leave and termination entitlements. Visit fairwork.gov.au/pact

Who can help?

Fair Work Ombudsman

- ▶ has information and advice about pay and entitlements
- ▶ provides free calculators, templates and online courses
- ▶ helps fix workplace problems
- ▶ enforces workplace laws and seeks penalties for breaches of workplace laws.

Visit fairwork.gov.au or call on 13 13 94.

Fair Work Commission

- ▶ deals with disputes about a range of issues, including unfair dismissal, bullying, sexual harassment, discrimination and 'adverse action' at work
- ▶ approves, varies and terminates enterprise agreements
- ▶ makes, reviews and varies awards
- ▶ issues entry permits and resolves industrial disputes
- ▶ regulates registered organisations.

Visit fwc.gov.au or call on 1300 799 675.



National employment standards

The National Employment Standards (NES) are minimum entitlements that apply to all employees. NES entitlements include the right to be given certain information statements. You also have the right to request flexible working arrangements, and a right to get superannuation contributions from your employer. The table below summarises other NES entitlements. Rules and exclusions apply. **Your award or agreement may provide more.** Find more information on the NES at fairwork.gov.au/nas

	Full-time and part-time employees	Casual employees
Annual leave	✓ 4 weeks paid leave each year. Part-time employees get a pro rata amount. Eligible shift workers get 1 extra week.	✗ No entitlement to paid annual leave.
Personal leave (Sick or carer's leave)	✓ 10 days paid leave each year. Part-time employees get a pro rata amount.	✗ No entitlement to paid personal leave.
Carer's leave	✓ If all paid personal leave has been used, employees can take 2 days unpaid leave on each permissible occasion.	✓ 2 days unpaid leave on each permissible occasion.
Compassionate leave	✓ 2 days paid leave on each permissible occasion.	✓ 2 days unpaid leave on each permissible occasion.
Family and domestic violence leave	✓ 10 days paid leave each year.	✓ 10 days paid leave each year.
Community service leave Jury duty Voluntary emergency management activities	✓ 10 days paid leave with make-up pay and unpaid leave as required for jury duty. ✓ Unpaid leave to engage in eligible community service. This includes voluntary emergency management activities.	✓ Unpaid leave as required for jury duty. ✓ Unpaid leave to engage in eligible community service. This includes voluntary emergency management activities.
Long service leave	✓ May be entitled to long service leave under the NES, an enterprise agreement or under state or territory laws. Amount and eligibility rules vary.	✓ May be entitled to long service leave under the NES, an enterprise agreement or under state or territory laws. Amount and eligibility rules vary.
Parental leave Eligible after 12 months employment	✓ 12 months unpaid leave. Can extend up to 24 months with employer's agreement.	✓ 12 months unpaid leave for regular and systematic casuals. Can extend up to 24 months with employer's agreement.
Maximum hours of work	✓ Full-time employees – 38 hours each week plus reasonable additional hours. ✓ Part-time employees – 38 hours or the employee's ordinary weekly hours, whichever is less. They may work reasonable additional hours.	✓ 38 hours or the employee's ordinary weekly hours, whichever is less. They may work reasonable additional hours.
Public holidays	✓ A paid day off if you'd normally work that day. If asked to work you can refuse, if it's reasonable to do so.	✓ An unpaid day off. If asked to work you can refuse, if it's reasonable to do so.
Notice of termination	✓ 1 to 5 weeks notice (or pay instead of notice) based on length of employment and age.	✗ No entitlement to notice of termination.
Redundancy pay Eligible after 12 months employment	✓ 4 to 16 weeks pay based on length of employment. Some exclusions apply.	✗ No entitlement to redundancy pay.
Employee choice about casual employment	✗ Not applicable.	✓ The right to notify an employer to change to full-time or part-time employment in some circumstances. Rules apply.

Flexibility

After 12 months employment, you may have the right to make a written **request for flexible working arrangements**. This includes if you're pregnant, 55 or over, a carer, have a disability, are experiencing family and domestic violence, are supporting a member of your immediate family or household who is experiencing family and domestic violence, or are the parent of, or have caring responsibilities for, a child of school age or younger. Employers need to follow certain rules for responding to a request for flexible working arrangements, including responding in writing within 21 days. Find out more about the rules for flexible working arrangements at fairwork.gov.au/flexibility

You and your employer can also **negotiate an individual flexibility arrangement**. This would change how certain terms in your award or enterprise agreement apply to you. An individual flexibility arrangement must be a genuine choice, it can't be a condition of employment. The arrangement must leave you better off overall.

Right of entry

Union officials with an entry permit can enter the workplace to talk to workers that they're entitled to represent. They can also enter to investigate suspected safety issues or breaches of workplace laws.

They must comply with certain requirements, such as notifying the employer, and can inspect or copy certain documents. Strict privacy rules apply to the permit holder and their organisation. They also apply to your employer. The rules protect your personal information. Find out more about entry permits at fwc.gov.au/entry-permits

Agreement making

Employers and employees (or their representatives, like a union) can negotiate for an agreement for their workplace. This process is called 'bargaining' and must follow set rules. The Fair Work Commission checks and approves agreements.

For information about making, varying, or terminating an enterprise agreement visit fwc.gov.au/agreements

Transfer of business

If a transfer of business occurs, your employment with your old employer ends. If you're employed by the new employer within 3 months to do the same (or similar) job, some of your entitlements might carry over. This may happen if, for example, the business is sold or work is outsourced.

Find out about the rules for a transfer of business at fairwork.gov.au/transfer-of-business

Protections at work

All employees have protections at work. You can't be treated differently or worse because you have or exercise a workplace right. For example, the right to request flexible working arrangements, take leave, or make a complaint or enquiry about your employment.

You have the right to join a union or choose not to, and to take part in lawful industrial activity or choose not to.

You have the right to talk about (or not talk about) your current or past pay. You can also discuss the terms and conditions of employment that would be needed to work out your pay, such as your hours of work. You can also ask other employees about their pay and terms and conditions of employment, but they don't have to tell you.

You have protections when you're temporarily away from work due to illness or injury. You are also protected from discrimination, bullying, sexual harassment, coercion, misrepresentation, sham contracting, and undue influence or pressure. Find out more about your protections at work at fairwork.gov.au/protections

Find information about bullying and harassment at fairwork.gov.au/bullying-harassment

Ending employment

When your employment ends, your final pay should include **all outstanding entitlements**. This includes wages, unused annual leave and long service leave.

You may be entitled to **notice of termination**, or pay instead of notice. If you're dismissed for serious misconduct, you're not entitled to notice. If you resign you may have to give your employer notice. You can check if notice is required and what should be in your final pay.

Visit fairwork.gov.au/ending-employment

If you think your **dismissal was unfair or unlawful**, you have **21 calendar days** to lodge a claim with the Fair Work Commission. Rules and exceptions apply. Find out more about unfair dismissal at fwc.gov.au

Did you know?

You can create a free **My account** to save your workplace information in one place. Visit fairwork.gov.au/register

You can find **free online courses** to help you start a new job or have difficult conversations at work.

Go to fairwork.gov.au/learning

You can access a wide range of **free tools and resources**. This includes templates, best practice guides and fact sheets. Find them at fairwork.gov.au/tools-and-resources



Important: New casual employees also need to be given the Fair Work Information Statement. Visit fairwork.gov.au/fwis
New employees on a fixed term contract also need to be given the Fixed Term Contract Information Statement. Visit fairwork.gov.au/ftcis



For help in your language visit fairwork.gov.au/language-help

Summary

From 26 August 2024, there are changes to casual employment. These include:

- ▶ a new definition of 'casual employee'
- ▶ a new pathway for employees to request to change from casual to permanent (full-time or part-time) employment
- ▶ new requirements for providing the Casual Employment Information Statement (CEIS).

If your employment started before 26 August 2024 and you were correctly classified as a casual then you are still casual under the new definition. Go to our website for more information at fairwork.gov.au

Read this statement to find out more.



When should I get this statement?

The CEIS needs to be given to new casual employees before they start employment, or as soon as possible after. The CEIS also needs to be provided to all casual employees again after:

- ▶ 12 months of employment for casual employees of small businesses
- ▶ 6 months of employment, 12 months of employment, and every subsequent period of 12 months of employment for casual employees of non-small businesses.



Who is a casual employee?

You may be a casual if when you start employment:

- ▶ there is no firm advance commitment to ongoing work, taking into account a number of factors, including the real substance and true nature of the employment relationship; and
- ▶ you're entitled to a casual loading or specific casual pay rate under an award, registered agreement, or employment contract.

This requires consideration of the practical reality and true nature of the employment relationship, not just what is in the employment contract. You can also look at any additional mutual understandings or expectations about the relationship.

Employees who start as a casual will stay casual until their employment status changes either through:

- ▶ changing to permanent employment under a pathway in the National Employment Standards (NES), a Fair Work instrument such as an award or enterprise agreement, or a Fair Work Commission order, or
- ▶ accepting an alternative employment offer and starting work on that basis.



Not sure if you're covered by an award or agreement?

Some awards and agreements have additional entitlements for casual employees.

Visit fairwork.gov.au/awards
and fairwork.gov.au/agreements

Family and domestic violence leave

Casual employees can take 10 days of paid family and domestic violence leave per year. For more information visit fairwork.gov.au/fdvleave



What is a 'firm advance commitment'?

To work out if there is a firm advance commitment to ongoing work, you'll need to consider if:

- ▶ your employer can offer or not offer work to you (and whether this is happening)
- ▶ you can accept or reject work (and whether this is happening)
- ▶ it's reasonably likely there will be future work available of the kind that you usually perform in the employer's business, based on the nature of the business
- ▶ you have a regular pattern of work
- ▶ there are full-time or part-time employees performing the same kind of work in the employer's business that you usually do.

There may also be other relevant factors. Not all factors need to be satisfied and there is no single deciding factor that determines whether you are casual or not. The practical reality and true nature of the employment relationship needs to be considered.

Example of no firm advance commitment

Priya starts a new role as a shop assistant. The shop owner has hired Priya to work during the Christmas period, when the shop is busier than normal, and they need extra staff.

Priya is offered shifts a week in advance and the shifts vary week-to-week based on how busy the store is. Priya can decide whether or not she wants to work the shifts, and her pay rate includes a casual loading. Towards the end of the Christmas period, business starts slowing down and Priya receives fewer shifts.

Priya is a casual employee because:

- ▶ there's no firm advance commitment to ongoing work
- ▶ she receives a casual pay rate.



How can I change from casual to permanent?

Eligible casual employees have the right to notify their employers in writing to change to permanent employment under the employee choice pathway in the NES. An employer can only not accept the notification on particular grounds.

You're entitled to notify your employer if:

- ▶ you've been employed for at least **6 months** (or 12 months if you work for a small business)
- ▶ you believe you're no longer meeting the definition of a casual employee
- ▶ you're not currently engaged in a dispute with your employer about changing to permanent employment under this pathway
- ▶ during the **last 6 months**:
 - you haven't resolved a dispute with your employer about the pathway
 - your employer hasn't refused a previous notification under this pathway.

Note: Sometimes casual employees work a regular pattern of hours. This doesn't mean they're permanent.

What you need to do

If you're eligible and want to notify your employer to change to permanent, make the request in writing.

What your employer needs to do

If they're accepting the change, they must respond in writing within 21 days of receiving your notification. They must also consult with you about the following matters, which have to be included in the response:

- ▶ what your new employment status will be (for example, full-time or part-time)
- ▶ your new hours of work
- ▶ when the change will take effect (which must be the first day of your first full pay period that starts after the response, unless you and your employer agree to another day).

If they're not accepting the change, they need to consult with you and tell you the reasons why in writing within 21 days of receiving your notification.

An employer can only not accept a notification to change to permanent if any of the following apply:

- ▶ the employee still meets the definition of a casual employee
- ▶ accepting the change means the employer isn't complying with a recruitment or selection process required by law
- ▶ there are fair and reasonable operational grounds for not accepting it, such as:
 - substantial changes to the way that work within the business is organised would be required
 - there would be significant impacts on the operation of the employer's business
 - substantial changes to employment conditions would be reasonably necessary to ensure the employer doesn't break rules (such as in an **award** or **agreement**) that would apply to the employee.

⚠ Important

Under the NES, all notifications and responses about an employee's choice to change to permanent employment must be **in writing**. 'In writing' can include handwritten, printed, and electronic formats.



More information

For more information about casual employment, an employee's choice about casual employment, and casual conversion prior to 26 August 2024, go to fairwork.gov.au/casual and fairwork.gov.au/employeechoice



What if my employer disagrees with me about changing to permanent?

If you and your employer disagree about changing to permanent employment, including the rules and requirements for changing from casual to permanent employment, there are steps you can take to resolve it.

- Step 1:** In the first instance, you and your employer must try to resolve the dispute by discussions at the workplace level. You can use our free online courses linked below to help you do this. If you're covered by an **award or enterprise agreement**, you can also follow the process that it sets out for dealing with disputes about the NES.
- Step 2:** If discussions at the workplace level don't resolve the dispute, either you or your employer can refer the dispute to the Fair Work Commission (the Commission). The Commission may deal with the dispute as it considers appropriate. This can include by mediation, conciliation, or by other informal ways.
- Step 3:** If the dispute still isn't resolved, the Commission is able to arbitrate the dispute. This is a formal process and can result in a legally binding decision (for example, at a hearing). During arbitration, the Commission can also make orders relating to an employee's choice about casual employment including that the employee continues to be treated as a casual employee or that the employee be treated as a permanent employee.

Depending on your circumstances, you may be able to have someone to support or represent you through the dispute process. This could include a union entitled to represent you.



Get help with conversations in the workplace

Find free online courses to help you have conversations at work, including about notifying your employer of your intention to change to permanent at fairwork.gov.au/learning



Can my employer avoid following the rules?

Your employer can't do certain things to avoid their obligations or your right to change from casual to permanent employment, such as reducing or varying your hours of work, changing your pattern of work, or terminating your employment. These are called the anti-avoidance protections.

If your employer does any of these things, it may also be adverse action. You are protected against your employer taking adverse action against you because you have or exercised a workplace right (which includes notifying your employer to change from casual to permanent employment). If unlawful adverse action is found to have occurred, civil penalties could apply. For more information, visit fairwork.gov.au/protections.



Who can help?

Fair Work Ombudsman

- ▶ provides information and advice about your employment type (casual or permanent)
- ▶ provides information and advice about rights, pay and entitlements of casual employees, including entitlements to change to permanent employment
- ▶ has free calculators, templates and online courses
- ▶ helps fix workplace problems
- ▶ enforces workplace laws and seeks penalties for breaches of workplace laws.

Visit fairwork.gov.au or call **13 13 94**.

Fair Work Commission

- ▶ deals with disputes about changes from casual to permanent employment under the NES where you're not able to resolve them directly with your employer
- ▶ can deal with your dispute through mediation, conciliation, making a recommendation or expressing an opinion
- ▶ if the dispute is not resolved or there are exceptional circumstances, can deal with your dispute through arbitration resulting in making a binding decision.

Visit fwc.gov.au or call **1300 799 675**.